

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/23/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: BRITSSA ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

The minor plaintiffs Britssa Alferez Rubio, Jonathan Alferez Rubio, and Kevin Alferez, by and through their duly appointed guardian *ad litem* herein, Claudia Rubio ("Plaintiffs") filed three separate petitions on November 3, 2025 seeking court approval of the compromises of Plaintiffs' claims and proposed dispositions set forth therein (the "Minor's Compromise Petitions"). See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise Petitions were set for hearing on March 23, 2026.

Analysis

The Minor's Compromise Petitions are unopposed. The Court has considered the verified Minor's

Compromise Petitions and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise Petitions are APPROVED.
2. Counsel for the moving parties to submit proposed forms of order for the Court's approval and entry.

2. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: JONATHAN ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

See LINE 1 above.

3. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: KEVIN ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

See LINE 1 above.

4. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: MOVE THE OBJECTION/REPLY FILING DATE AND THE HEARING DATE FOR COURT-APPOINTED RECEIVER DAN HARKINS' MOTION FOR AN ORDER TERMINATING RECEIVERSHIP**
FILED BY: TRIPPPIE, NICOLE D.
TENTATIVE RULING:

Plaintiff Nicole Tripppie ("Plaintiff") filed a Motion to (1) Move the Objection/Reply Filing Dates and the Hearing Date for Court-Appointed Receiver Dan Harkins' Motion for an Order Terminating Receivership, (2) Order Court-Appointed Receiver Dan Harkins to Submit to Discovery, and (3) Terminate the Receivership, but not Discharge Dan Harkins on November 17, 2025 (the "November 17, 2025 Motion"). The November 17, 2025 Motion was set for hearing on March 23, 2026.

The Request for Judicial Notice filed in support of the motion is GRANTED.

Background

The court-appointed receiver (the "Receiver") filed a final account and report on November 3, 2025. The Receiver has filed a Motion for an Order: 1. Approving Receiver's Final Report and Account; 2.

Discharging Receiver; 3. Approving Final Fees and costs of Receiver and Counsel; 4. Approving Disposition of CMD Saloon, LLC's Assets; and 5. Terminating Receivership (the "Receivership Motion"). At the time of the November 17, 2025 Motion, the Receivership Motion was set for hearing on December 8, 2025. Since that time, the motion was continued several times and is presently set for April 23, 2026. See Issue Conference Order / CMC Order entered January 20, 2026 (the "January 20, 2026 CMC Order").

Analysis

The November 17, 2025 Motion sought to modify the prior hearing and briefing schedule on the Receivership Motion. Plaintiff argued that "recently discovered evidence of misconduct and mismanagement" and needed more time to investigate. The motion also sought to compel the Receiver to submit to a deposition and produce documents. Lastly, the motion sought to terminate the receivership immediately but to "retain jurisdiction" over the Receiver.

Scheduling

To the extent this motion sought an order to delay the hearing and briefing on the Receivership Motion, the motion is moot. Since the motion was filed, the Court already continued the hearing several times and then entertained extensive case management proceedings and gave all parties additional time, pushing the Receivership Motion to the April 2026 date.

Discovery

As discussed in its prior order entered March 10, 2026, the Court has no doubt that it has the power and authority to make orders in relation to the receivership, including as relates to the disclosure of books and records relating to the work of the Receiver. *Lesser & Son v. Seymour* (1950) 35 Cal. 2d 494, 499 ("The receiver is a mere agent and the property in his hands is really under the control and continuous supervision of the court.").

The Court understands that the parties have since conferred further with the Receiver about voluntary access to the Receiver's books and records. Moreover, as part of the prior case management proceedings, the Court ordered the parties to "to meet and confer regarding all unresolved discovery related matters." See January 20, 2026 CMC Order, ¶17.

No party has filed any further declaration or other paper showing that this meet and confer took place as relates to the discovery issues raised by November 17, 2025 Motion or otherwise indicating that any dispute remains after any informal efforts to obtain information and records from the Receiver since last Fall.

Termination of the Receivership

The Court declines to reach this issue in the context of this motion. The Receivership Motion is pending and a briefing schedule for all parties to address all issues in that pending proceeding, including discharge of the receiver and surcharge for any asserted misconduct, has been set after extensive case management proceedings.

Disposition

The Court finds and rules as follows:

1. The November 17, 2025 Motion is DENIED.
2. The Court shall issue the order after hearing.

5. 9:00 AM CASE NUMBER: C24-00605

CASE NAME: VIKAS PRAKASH VS. WILSON AQUINO

HEARING ON SUMMARY MOTION

FILED BY: AQUINO, WILSON

TENTATIVE RULING:

On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 30, 2026.**

6. 9:00 AM CASE NUMBER: C24-01669

CASE NAME: DIEGO RIVEROS VS. CHRISTOPHER MARCONI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DANIEL A. MULLER**

FILED BY: MARCONI, CHRISTOPHER

TENTATIVE RULING:

Daniel A. Muller ("Counsel") filed a Motion to be Relieved as Counsel on November 3, 2025 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on March 23, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant Christopher Marconi ("Defendant").

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to payment and communication issues. See Declaration filed November 3, 2025, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The hearing set for April 29, 2026 regarding an Order to Show Cause (OSC) issued to Counsel is VACATED and the OSC DISCHARGED.
3. Counsel to submit a proposed form of order after hearing.

7. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: SEAL PORTIONS OF DEC OF KRISTEN T GALLAGHER IN SUPPORT OF DEF MOTION TO DISQUALIFY PLTFS COUNSEL FOR UNAUTHORIZED DOCUMENT COLLECTION AND POSSESSION OF TAX RECORDS**

FILED BY: EDEN VALLEY RANCH LLC

TENTATIVE RULING:

Defendants David Seeno and Gold Coast Pipelines, Inc. (“Defendants”) filed a Motion to Seal on November 3, 2025 (the “Motion to Seal”). The Motion to Seal was set for hearing on March 23, 2026. The motion is unopposed.

Background

This motion seeks to seal portions of the Declaration of Kristen T. Gallagher in Support of Defendants’ Motion to Disqualify Plaintiffs’ Counsel for Unauthorized Document Collection and Possession of Tax Records and for Sanctions (the “Portions to be Sealed”). The subject pleading was filed on November 3, 2025 with the Portions to be Sealed redacted from the public filing.

The Court has already heard and decided the underlying motion to which the pleading relates. It does not appear that the Court ruled on the Motion to Seal as past of that ruling. See Order entered February 5, 2026.

Analysis

Under the California Rules of Court, “[u]nless confidentiality is required by law, court records are presumed to be open.” Rule 2.550(c) of the California Rules of Court (“CRC”). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The supporting declaration describes that the moving parties only seek to seal certain very specific portions of the subject pleadings. See Declaration of Kristen T. Gallagher, ¶¶3-5.

The unredacted versions of both pleadings were lodged for the Court's review. The redacted materials are represented to include confidential information that presents a risk of serious personal or other injury to the parties to this action and other third parties if disclosed publicly. *Id.* at ¶13. The Portions to be Sealed appear narrowly tailored.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

Disposition

The Court finds and orders as follows:

1. The Motion to Seal is GRANTED. The Court orders the sealing of Portions to be Sealed that were filed provisionally under seal.
2. The Court shall issue the order after hearing.

8. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86;**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

ATTACHMENT A

LINES 8-16 and 19-20: MICHAEL HOFFMAN, ET AL. VS. PETER DOCTER, ET AL.
(C24-00689)

Plaintiff Michael Hoffman ("Plaintiff") filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants. Collectively, these motions are referred to herein as the "Motions to Compel Further Responses." The Motions to Compel Further Responses were set for hearing on various dates and ultimately consolidated for hearing on the March 23, 2026 calendar by the Court. See Order entered February 19, 2026. The Court also directed the parties to confer further and advise as to the items that remain in dispute.

The parties filed a Joint Report on March 12, 2026 that details the particular discovery requests that remain in dispute, as detailed further below. The Court address each of them in turn.

Background

The discovery requests which remain at issue in the Motions to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. **Special Interrogatories Nos. 7, 9-14, 19-26, 32, 34 and 35** (Set One) propounded by Plaintiff

upon defendant Mark Becker, Inc. (the “**MBI SROGs**”);

2. **Special Interrogatories Nos. 5, 7-13, 15-17, 23, 25 and 26** (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker SROGs**”);
3. **Special Interrogatories Nos. 1, 8-9, 13 and 16** (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter SROGs**”);
4. **Request for Production of Documents Nos. 1, 4-6, 10-14, 20, 25, 27, 29-30, 33-39, 42-47, 50-54, 62-66, 71 and 74-78** (Set One) propounded by Plaintiff upon defendant Mark Becker, Inc. (the “**MBI RPDs**”);
5. **Request for Production of Documents Nos. 1, 4-6, 10-14, 20, 25, 27, 29-30, 33-39, 42-47, 50-54, 62-66, 71 and 74-78** (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker RPDs**”);
6. **Request for Production of Documents Nos. 8, 9 and 10** (Set One) propounded by Plaintiff upon defendant Comerica Bank & Trust, N.A. (the “**Comerica RPDs**”);
7. **Request for Production of Documents Nos. 14, 19, 20, 32-39, 54 and 60** (Set One) propounded by Plaintiff upon defendant Peter Docter (the “**Peter Docter RPDs**”);
8. **Form Interrogatories (General) No.17.1** (Set One) propounded by Plaintiff upon defendant Mark Becker (the “**Mark Becker FROGs**”); and
9. **Form Interrogatories (General) No.17.1** (Set One) propounded by Plaintiff upon defendant Mark Becker, Inc. (the “**MBI FROGs**”).

Opposition papers were filed on March 10, 2026.

Amended Separate Statements and reply papers were filed by Plaintiff on March 16, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statements, the Opposition papers and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery

Requests at issue:

Special Interrogatories: MBI SROGs

MBI SROGs No. 7

First, this response has been amended since the filing of the motion. Declaration of Ondrej Likar in Support of MBI's Opposition to Motion to Compel Further Responses filed March 10, 2026 (re MBI SROGs), ¶5 and **Exhibit B** thereto. Indeed, amended responses were served as to most of the subject interrogatory responses, including Nos. 7, 9-14, and 20-25 raised by the motion (the "Amended MBI Interrogatory Responses"). Of the subject interrogatories, only **Nos. 19, 26, 32 and 35** appear not to have been amended since the filing of the motion. Those are addressed in turn below.

Any issue with the further responses, as amended, would have to have been raised by a motion directed at the Amended MBI Interrogatory Responses within the statutory timeframe. See Code Civ. Proc. § 2031.310(c) ("Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.").

Second, even if the Court arguably has discretion to consider the motion to compel further responses as relates to the Amended MBI Interrogatory Responses, the Court declines to do so. Plaintiff failed to timely file the Amended Separate Statements until March 16, 2026, days before the hearing and after the due date for Opposition papers.

Third, even if the Court were inclined to consider the Amended Separate Statements and whether to compel further responses as relates to the Amended MBI Interrogatory Responses, the motion is further defective because Plaintiff failed to demonstrate the statutorily required meet and confer as to the Amended MBI Interrogatory Responses. Plaintiff failed to meet and confer in good faith—**either in person, by telephone, or by videoconference**—to resolve any perceived remaining issues with respect to the Amended MBI Interrogatory Responses.

Plaintiff is admonished for such failure to meet and confer in good faith before persisting in prosecuting the discovery motion with the Court. See Code Civ. Proc. § 2016.040 ("A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."); see also Code Civ. Proc. § 2030.300(b)(1) ("A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.").

Lastly, even if the Court were to reach the merits of the request for a further response to this discovery request, the Court would deny it. Plaintiff's request that the responding party "IDENTIFY each and every COMMUNICATION between YOU and WOLFF between January 1, 2012 and present" is excessively broad. It is unbounded by subject matter which is aggravated by the more than 13 year period covered by the request. The Court is also mindful that the crux of allegations relate to the development work at issue in this case, the earliest allegations of matters relating to such work are alleged to have occurred in the early 2020s and later. See Complaint, ¶18 *et seq.* Even presuming that some discovery relating back to the earliest events described going back to 2012 may arguably lead to the discovery of admissible evidence (see Complaint, ¶14 *et seq.*), the Court concludes that the burden, expense, and intrusiveness of the discovery request clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

Therefore, the motion is DENIED as to this interrogatory.

MBI SROGs No. 9-14, and 20-25

As discussed above, all of these responses have been amended since the filing of the motion and the motion as to these items is DENIED for same reasons discussed above in connection with MBI SROGs No. 7.

In light of the multiple procedural defects, the Court declines to address further the substantive merits of the request for further responses to these discovery requests as relates to the Amended MBI Interrogatory Responses.

MBI SROGs No. 19

SPECIAL INTERROGATORY NO. 19

Identify the total sum paid to YOU for services YOU rendered CONCERNING the DEVELOPMENT.

The responding party objects based on the scope of the request, including in view of the breadth of certain definitions. Among those is the definition of “YOU” which occurs in an earlier interrogatory. The incorporated definitions of “MBI,” “YOU” and “YOUR” in the request render the request grossly overbroad on its face. Incorporated in the definition of “YOU” and “YOUR” is language that purports to wrap in an expansive web of persons and entities associated with the responding party (especially considering the reference to “predecessors in interest,” “partners” and “attorneys”) in a manner that would sweep in matters not reasonably related to a legitimate discovery need in light of the nature of the claims at issue in the case. As written, for example, MBI’s attorneys would have to identify all sums paid to them in connection with this litigation thus far as such payments no doubt concern the “DEVELOPMENT” as those other terms are also broadly defined.

While one can imagine a more narrowly tailored request that might well be discoverable in light of the issues in this case, the Court is ruling on the request as propounded.

The motion is DENIED as to this interrogatory.

MBI SROGs No. 26

SPECIAL INTERROGATORY NO. 26

IDENTIFY all safety analyses undertaken in connection with the design of the DEVELOPMENT.

It is not clear to the Court how identifying “all safety analyses” in connection with “the design” of the development is relevant or reasonably calculated to lead to the discovery of admissible evidence. Even if arguably somehow probative of some fact of consequence to the claims as pled in this case, the Court concludes that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

The motion is DENIED as to this interrogatory.

MBI SROGs No. 32

SPECIAL INTERROGATORY NO. 32

IDENTIFY each and every non-privileged COMMUNICATION between YOU and any PERSON CONCERNING PLAINTIFFS between January 1, 2021 and present.

The definition of "PERSON" (contained in a prior interrogatory) is extraordinarily broad.

PERSON: name; address; telephone number; and (ii) "PERSON(S)" means, without limitation, any natural PERSON, governmental entity or subdivision thereof, corporation, partnership, limited partnership, limited liability partnership, limited liability company, or other legal entity, and includes the present and former officers, executives, partners, directors, managers, trustees, employees, attorneys, agents, representatives, brokers and all other PERSONS acting or purporting to act on behalf of them, and any of their present or former parent corporations, subsidiaries, affiliates, divisions, predecessors and successors-in-interest.)

Given the scope, essentially any person or entity whatsoever, this interrogatory is grossly overbroad as it is not otherwise bounded by any subject matter whatsoever. It also appears evident that the request would potentially sweep in matters not probative of the claims at issue or otherwise reasonably calculated to lead to the discovery of admissible evidence.

Even if somehow probative of some fact of consequence to the claims as pled in this case, the Court concludes that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

The motion is DENIED as to this interrogatory.

MBI SROGs No. 35

SPECIAL INTERROGATORY NO. 35

IDENTIFY each and every COMMUNICATION between YOU and any PERSON CONCERNING the 2024 DESIGN REVIEW APPLICATION. (For the purposes of these requests, the term "2024 DESIGN REVIEW APPLICATION" means the application for Design Review submitted by Mark Becker to the CITY on approximately September 30, 2024 in connection with the DEVELOPMENT.)

The compounding of multiple extraordinarily broad defined terms, as discussed at length above, renders this interrogatory overbroad. Considering that and in view of the definition of "IDENTIFY" as applied to a "COMMUNICATION," the Court concludes that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

The motion is DENIED as to this interrogatory.

Special Interrogatories: Mark Becker SROGs

Mark Becker SROGs No. 5

The motion as to this interrogatory is DENIED for same reasons discussed above in connection with MBI SROGs No. 7.

Mark Becker SROGs Nos. 7-13, 15-16, and 23

Similar to the issues discussed above, all of these responses have been amended since the filing of the motion and the motion as to these interrogatories is DENIED for same reasons discussed above.

Mark Becker SROGs Nos. 17, 25 and 26

The responses to these interrogatories have not been amended. The substance of the requests have been considered, as addressed above. The motion is DENIED as to these interrogatories.

Special Interrogatories: Peter Docter SROGs

Peter Docter SROGs Nos. 1, 8-9, 13, and 16

It appears that defendant Peter Docter also served second amended responses on September 19, 2025. See Declaration of Ondrej Likar filed March 10, 2026 (re Peter Docter SROGs), ¶17 (“The parties continued to meet and confer and Peter Docter served further amended responses to Special Interrogatories on June 6, 2025 and September 19, 2025.”). However, it does not appear that a full copy of the amended responses were attached to this declaration. Nor does it appear that the second amended responses were attached to the moving papers either, though reference is made to them.

Accordingly the Court is not in a position to review and make determinations as to this set of interrogatories at this time.

The parties are ordered to engage in further meet and confer regarding this set of interrogatories, as addressed further below.

Form Interrogatories (General): Mark Becker FROGs

Mark Becker FROGs No.17.1.

Amended responses to these Form Interrogatories were served on September 26, 2025. Declaration of Kevin Tredway filed September 30, 2025, ¶11 and **Exhibit G** thereto. Both the moving and Opposition papers make clear that Plaintiff did not meet and confer as to the specific amended response to Mark Becker FROGs No.17.1 before the motion was filed.

Moreover, a second amended response to Mark Becker FROGs No.17.1 was served on March 10, 2026. Declaration of Ondrej Likar filed March 10, 2026, ¶17 and **Exhibit A** thereto.

The Court does not address the substance of the response to **Mark Becker FROGs No.17.1**, as Plaintiff failed to proffer an adequate declaration reflecting statutorily compliant meet and confer efforts before resorting to the motion as to this interrogatory. See Code Civ. Proc. §§ 2016.040 and 2030.300(b)(1).

The motion is DENIED as to this interrogatory.

Form Interrogatories (General): MBI FROGs

MBI FROGs No.17.1.

The motion as to this interrogatory is DENIED for same reasons discussed above in connection with Mark Becker FROGs No.17.1.

Further Meet and Confer regarding the Remaining Discovery Requests

The Court continues the hearing as related to the Peter Docter SROGs and all of the other Discovery Requests not addressed above (the “Remaining Discovery Requests”). For clarity, the Remaining Discovery Requests are as follows:

- **Peter Docter SROGs**
- **MBI RPDs**
- **Mark Becker RPDs**
- **Comerica RPDs**
- **Peter Docter RPDs**

The parties are ordered to meet and confer in good faith—either in person, by telephone, or by videoconference—to resolve any remaining issues with respect to the Remaining Discovery Requests (the “Further Meet and Confer”).

Joint Separate Statement Regarding Remaining Discovery Requests. As to any Remaining Discovery Requests not resolved by the Further Meet and Confer, the parties shall prepare and submit a Joint Separate Statement. This pleading shall confirm to the requirements of Rule 3.1345 of the California Rules of Court (“CRC”). **In addition, the Joint Separate Statement shall be prepared in a table/chart format with a landscape orientation on legal sized paper and a hard copy version provided to the Court.** Plaintiff shall prepare the initial draft and then provide the draft to the other side. No single entry on the Joint Separate Statement, other than the verbatim copy of the subject request(s) and response(s), shall exceed 200 words. Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file endorsed copy of the pleading. The Joint Separate Statement shall be filed no later than May 4, 2026. **The parties shall also cooperate to provide the courtesy hard copy of the Joint Separate Statement to Department 34 by May 4, 2026.**

The parties are admonished to give due consideration to the findings made above with respect to the interrogatories considered and ruled upon by the Court. The parties are further admonished to consider whether agreed upon limitations, carve-outs or protective orders may resolve the issues with respect to the Remaining Discovery Requests.

Sanctions

The Court reserves consideration of the imposition of sanctions pending resolution of the further proceedings. The Court will be mindful of the robustness, or lack thereof, of the parties’ efforts and engagement in these further meet and confer efforts when considering the imposition of sanctions or the mitigation of them.

Disposition

The Court further finds and orders as follows:

1. The Motions to Compel Further Responses are DENIED IN PART (as to the MBI SROGs, Mark Becker SROGs, Mark Becker FROGs and MBI FROGs and the discovery no longer at issue based on the Joint Report) and CONTINUED IN PART as to Remaining Discovery Requests.
2. The hearing on the Motions to Compel Further Responses as to the Remaining Discovery Requests is continued to **May 18, 2026, 9:00 am** in **Department 34**.

3. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER; REQUEST FOR
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

10. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.; REQUEST FOR
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86;
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

11. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF
DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER; REQUEST FOR
MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86;
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

12. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR
ADMISSION (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER; REQUEST FOR MONETARY
SANCTIONS IN THE AMOUNT OF \$3,398.86;
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

13. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS SET 1 ON PETER DOCTER**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

14. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST, N.A.**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

15. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

16. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

17. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MASOUDI, ELISABETH B.
TENTATIVE RULING:

Before the Court is Defendant Elisabeth Masoudi's ("Ms. Masoudi" or "Defendant") demurrer. The demurrer relates to Plaintiff Robert Rodriguez's ("Plaintiff" or "Mr. Rodriguez") First Amended Complaint for (1) Intentional Interference with Prospective Economic Advantage; (2) Negligent Interference with Prospective Economic Advantage; (3) Conversion/ Embezzlement (Pen. Code section 503); (4) Civil Conspiracy; (5) Equitable Enforcement of Lien and Accounting; (6) Constructive Trust; (7) Declaratory Relief; (8) Intentional Misrepresentation, Concealment, Deceit and Fraud; and (9) Negligent Misrepresentation.

Pursuant to California Code of Civil Procedure section 430.10, Defendant demurs to the seven causes of action alleged against her in Plaintiff's First Amended Complaint – (1) Conversion/ Embezzlement (Pen. Code section 503); (2) Civil Conspiracy; (3) Equitable Enforcement of Lien and Accounting; (4) Constructive Trust; (5) Declaratory Relief; (6) Intentional Misrepresentation, Concealment, Deceit and Fraud; (7) Negligent Misrepresentation – on the grounds that all causes of action alleged against Ms. Masoudi are barred by the applicable statutes of limitations, Mr. Rodriguez never had a valid, enforceable charging lien as a matter of law, and Mr. Rodriguez fails to allege facts sufficient to establish any of the alleged causes of action.

Plaintiff, who is representing himself *in propria persona*, opposes Defendant's demurrer on the grounds that (1) Defendant's request for judicial notice is improper, (2) the First Amended Complaint pleads delayed discovery and fraudulent concealment with sufficient particularity to preclude a statute of limitations ruling on demurrer, (3) Plaintiff's present claims are tort-based and protect different primary rights than the previously-dismissed 2019 fee contract action, (4) Plaintiff has adequately pled the existence of a valid attorney's charging lien created by written agreement and notice, (5) Defendant's alleged concealment and impairment of that lien gives rise to liability under California law, and (7) the causes of action are adequately pled.

For the following reasons, Defendant's demurrer to Plaintiff's First Amended Complaint is **SUSTAINED in its entirety WITH LEAVE TO AMEND**.

Request for Judicial Notice

Defendant requests that the Court take judicial notice of (1) Plaintiff's Complaint filed in the action

entitled *Rodriguez v. Masoudi*, Contra Costa County Case No. MSC19-01309, (2) the Legal Services Agreement between Plaintiff and Defendant, and (3) the Court's ruling dated March 21, 2025, in *Rodriguez v. Masoudi*, Contra Costa County Superior Court, Case No. MSC19-01309.

Plaintiff opposes the Request for Judicial Notice on the grounds of irrelevance, lack of authentication, hearsay, Evidence Code section 352, and alleged violation of California Rules of Court 3.1110(f).

Plaintiff's objection on authentication grounds is without merit. The documents identified in Defendants' request consist of pleadings, docket entries, and court orders issued in this and related Contra Costa County Superior Court actions. Such materials are proper subjects of judicial notice. Judicial notice may be taken of records or rules of any court of this state, regardless of certification (Evid. Code § 452(d), (e).) A court may take judicial notice of its own records when ruling upon a demurrer. (*Nulaid Farmers Assn. v. La Torre* (1967) 252 Cal.App.2d 788, 791.)

It is proper when ruling on a demurrer for a court to take judicial notice of a prior judgment in a different case so long as the parties have had adequate notice and opportunity to present relevant information and the court is merely taking notice of the fact that certain claims were asserted by the plaintiff and denied by the defendant. (*Oeth v. Mason* (1967) 247 Cal.App.2d 805, 810, Evid. Code, § 453.) "Where facts which are judicially noticed show conclusively that an action is barred, it would be absurd to prolong the litigation so as to await some other method of proof." (*Ibid.*)

Plaintiff's hearsay objection likewise fails. The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, and the language used in those documents. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882 ["courts are free to take judicial notice of the *existence* of each document in a court file, including the truth of results reached, [however] they may not take judicial notice of the truth of hearsay statements in decisions and court files"]; see also *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.) The Court is capable of limiting its consideration to the permissible scope of judicial notice.

Plaintiff's objection under Evidence Code section 352 is also inapt. Judicial notice of court records relevant to procedural history and accrual issues does not create undue prejudice or confusion; as noted *supra*, the Court is capable of limiting its consideration to the permissible scope of judicial notice.

Plaintiff's objection on the basis of California Rules of the Court 3.1110(f) is also without merit. The materials at issue are properly submitted in support of a demurrer and fall within the scope of records subject to judicial notice. Plaintiff has not demonstrated any procedural defect warranting denial of the request.

Accordingly, the Court **GRANTS** Defendant's request for judicial notice as to the existence, filing, and contents of the above documents. The Court takes judicial notice of the fact that the pleadings, exhibits, and court orders in case number MSC19-01309 were filed and issued, and of the allegations

and procedural history reflected therein. The Court does not take judicial notice of the truth of any factual findings, hearsay statements, or legal conclusions contained in those materials.

Factual Allegations and Procedural Background

This suit arises out of an alleged attorney's lien agreement.

Mr. Rodriguez, a former attorney, alleges that in April of 2015 he served written notice of an attorney's lien on former client, Elisabeth Masoudi, whom he had previously represented in a family matter, *Masoudi v. Masoudi*, Contra Costa Superior Court Case No. D13-03393 ("Related Action No. 1"). (First Amended Complaint ("FAC") ¶ 8.) The lien, which attached to any recovery, settlement, or community property distributions in Related Action No. 1, was also allegedly noticed to Simona Zakheim ("Ms. Zakheim") and Hyden Zakheim LLP ("Hyden Zakheim"), as successor counsel. (FAC ¶¶ 8-9, Ex. A.)

Exhibit A, attached to the First Amended Complaint, is a copy of a "Notice of Attorney's Lien for Fees and Costs," listing Robert D. Rodriguez as the claimant in relation to the court action *in re Elisabeth Masoudi v. Peymon Masoudi*. (FAC at Ex. A.)

From April 2015 through July 2024, Mr. Rodriguez alleges that Ms. Masoudi and Ms. Zakheim and Hyden Zakheim, acting in concert, "actively concealed from Plaintiff the existence, nature, and terms of a settlement or property distribution in the dissolution action." (FAC ¶ 11.) Mr. Rodriguez further alleges that he "could not in the reasonable use of diligence [have] discovered such nature, and terms of a settlement or property distribution in the dissolution action because such information was concealed and secreted from [him]." (*Ibid.*)

On July 1, 2019, Mr. Rodriguez filed a verified complaint in Contra Costa County (C19-01309) ("Related Action No. 2") against Ms. Masoudi for (1) Breach of Contract; (2) Money Earned in Quantum Meruit for Reasonable Value of Work, Labor, and Services; (3) Account Stated; and (4) Book Account CCP §337a. (Def. RJN Ex. 1.) The complaint in Related Action No. 2 alleges that on July 19, 2013, Mr. Rodriguez entered into a contract "whereby [Ms. Masoudi] offered to pay Plaintiff for legal services related to a marital dissolution and domestic violence act matter." (*Id.* Ex. 1 at 2:23-26.)

The complaint in Related Action No. 2 goes on to allege that on July 15, 2015, Mr. Rodriguez demanded payment from Ms. Masoudi in the amount of \$69,593.04 for legal services previously rendered; Ms. Masoudi allegedly refused. (Def. RJN Ex. 1 at 3:6-9, 24-25.) The complaint further alleges that "[a]t all relevant times, Plaintiff's claim is secured by an attorney's lien for services that has been completely disregarded by Defendant." (*Id.* Ex. 1 at 3:16-17.)

On March 21, 2025, the court in Related Action No. 2 granted in its entirety a motion by Ms. Masoudi to (1) quash service of summons, (2) vacate default and default of judgment against Ms. Masoudi, (3) vacate and quash any writ of execution or abstract of judgment issued pursuant to the judgment, and (4) dismiss the action. (Def. RJN Ex. 3.) The court's order stated that the ruling was based on findings

related to fraudulent service of summons. (*Ibid.*)

Mr. Rodriguez filed the instant suit on May 16, 2025. In this action he alleges that on July 7, 2024, Ms. Masoudi first admitted to him that she had won “substantial community property funds from the dissolution case” and had used those funds to purchase a home. (FAC ¶ 13.) Mr. Rodriguez alleges that this was the first time he learned that Ms. Masoudi and the other Defendants in this case allegedly conspired to conceal and impair his lien. (*Ibid.*)

Mr. Rodriguez filed his First Amended Complaint on November 3, 2025, and this demurrer from Ms. Masoudi followed on December 22, 2025.

Meet and Confer Efforts

It is the responsibility of the demurring party to meet and confer with the opposing party at least five days prior to the date the responsive pleading is due. (Code of Civ. Proc. § 430.41(a)(2).) Before filing this demurrer, Defendant’s counsel met and conferred telephonically with Mr. Rodriguez on December 10, 2025, regarding the deficiencies raised by this demurer. (Adam Fullman Declaration (“Fullman Dec.”) ¶ 2.) Plaintiff declined to amend his complaint and acknowledged the instant motion would follow. (*Id.* ¶ 3.) Defendant’s efforts to meet and confer were adequate under the statute.

Legal Standard

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court considers all matters that may be judicially noticed. (*Ibid.*) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.)

When facts alleged in a pleading contrast with facts in exhibits, the facts contained in the exhibits will be accepted as true and controlling and will be given precedence. (*Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1627.)

The courts...will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. Thus, a pleading valid on its face may nevertheless be subject to demurrer when matters judicially noticed by the court render the complaint meritless.

(*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) “Where the complaint is defective, ‘[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...’” (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).)

Analysis

Statute of Limitations

The statute of limitations usually commences when a cause of action accrues, and it is generally said that an action accrues on the date of injury. (*Bernson v. Browning-Ferris Industries* (1994) 7 Cal.4th 926, 931.) A cause of action accrues at the time when the cause of action is complete with all of its elements. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191-92.)

The “discovery rule” is an exception to the general rule of accrual, and it postpones accrual of a cause of action until the plaintiff discovers or has reason to discover the cause of action. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) “[W]hen the plaintiff has notice or information of circumstances to put a reasonable person *on inquiry*, or *has the opportunity to obtain knowledge* from sources open to his investigation . . . the statute commences to run.” (*Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 101 (citations omitted) (emphasis in original).)

A plaintiff need not be aware of the specific “facts” necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.

(*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.)

The defendant’s fraud in concealing a plaintiff’s cause of action tolls the applicable statute of limitations for the period during which the claim is undiscovered by plaintiff or such time as plaintiff, by exercise of reasonable diligence, should have discovered it. (*Sanchez, supra*, 18 Cal.3d at 99.) “[T]he culpable defendant should be estopped from profiting by his own wrong *to the extent* that it hindered an ‘otherwise diligent’ plaintiff in discovering his cause of action.” (*Id.* at 100.)

Here, Mr. Rodriguez’s causes of action against Ms. Masoudi for intentional and negligent interference are subject to a two-year limitations period. (Code Civ. Proc. § 339(1).) His claim against Ms. Masoudi for conversion is subject to a three-year limitations period. (Code Civ. Proc. § 338(c).) To the extent that Mr. Rodriguez seeks enforcement of rights arising from the written fee agreement between himself and Ms. Masoudi, such claims are subject to a four-year limitations period. (*Id.*, § 337.) Civil

conspiracy, constructive trust, and declaratory relief asserted against Ms. Masoudi are derivative and governed by the statute applicable to the underlying substantive claims.

Ms. Masoudi argues that all seven of Mr. Rodriguez's claims against her are time-barred on their face. (Defendant's Demurrer to First Amended Complaint ("Def. Dem.") at 6:21-25.) This is so, she argues, because his 2019 suit against Ms. Masoudi demonstrates that Mr. Rodriguez "had actual knowledge that he had not been paid and that he purportedly had an unpaid lien." (*Id.* at 7:8-10.)

Mr. Rodriguez does not reconcile his prior verified allegation that his lien had been "completely disregarded" with his present assertion that he first discovered actionable wrongdoing in July 2024. (Def. RJN Ex.1 3:16-17, FAC ¶ 13.) He instead argues that the complaint in his 2019 suit is not judicially noticeable and that accrual turns solely on later discovery of settlement proceeds.

As discussed *supra*, the Court may take judicial notice of the existence and contents of the 2019 complaint. Mr. Rodriguez's previous verified allegations demonstrate that by July 2019, at the latest, he believed that his asserted lien rights had not been honored and that he had suffered injury. These allegations demonstrate that by July of 2019, he had more than suspicion of wrongdoing, he had incentive to sue, and in fact he did sue. (*Jolly, supra*, 44 Cal.3d at 1111.)

Mr. Rodriguez's allegation in the instant suit that he first learned in July of 2024 that Ms. Masoudi used dissolution proceeds to purchase real property does not alter this conclusion. The relevant inquiry for accrual is when Mr. Rodriguez discovered or had reason to discover that his alleged lien had been disregarded, not when he later learned how settlement or community property funds were used. A plaintiff is charged with knowledge once he has reason to suspect a factual basis for wrongdoing. (*Fox, supra*, 35 Cal.4th at 807.)

As currently pleaded, Mr. Rodriguez's First Amended Complaint demonstrates that he believed his asserted lien rights had been disregarded no later than July 2019. The instant suit, filed in May 2025, therefore appears untimely under any potentially applicable statute of limitations.

Because the Court concludes that Mr. Rodriguez's claims are time-barred as presently alleged, the Court need not reach the separate grounds that Defendant raises with respect to these causes of action. However, in an abundance of caution, Mr. Rodriguez is granted another opportunity to amend his complaint to allege, if he can do so in good faith, specific facts demonstrating that his claims are timely under the discovery rule.

Any amended pleading must clearly identify the factual basis for delayed discovery and explain why Plaintiff's prior verified allegations do not establish accrual in 2019. The Court cautions Mr. Rodriguez that where a complaint contains allegations inconsistent with attached documents or documents judicially noticed, the exhibits and judicially noticed documents will be accepted as true and controlling and will be given precedence. (*Dodd, supra*, 222 Cal.App.3d at 1627; *Del E. Webb Corp., supra*, 123 Cal.App.3d at 604.)

Conclusion

For the foregoing reasons, Defendant's demurrer is **SUSTAINED in its entirety WITH LEAVE TO AMEND.**

18. 9:00 AM CASE NUMBER: N23-1456
CASE NAME: PETITION OF: CURIA GLOBAL, INC.
***HEARING ON MOTION IN RE: AMEND JUDGMENT TO ADD VAXANIX BIO LTD. AND VAXANIX BIO ACQUISITION CORP. II AS JUDGMENT DEBTORS BY SUCCESSION**
FILED BY: CURIA GLOBAL, INC.
TENTATIVE RULING:

On the Court's own motion, the hearing on this matter is continued until April 27, 2026.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

20. 9:01 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT PETER DOCTER; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

21. 9:01 AM CASE NUMBER: C23-02461
CASE NAME: TRINITY LOVE VS. MICHAEL HILDNER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES**
FILED BY: LLORENTE, MANUEL J
TENTATIVE RULING:

Defendant Manuel Llorente ("Defendant") filed his Motion to Compel Further Responses to Request for Production of Documents, Set Two on September 29, 2025 (the "Motion to Compel Further

Responses”). The Motion to Compel Further Responses was initially set for hearing on January 7, 2026. The motion is opposed.

Background

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the “Discovery Requests”) are the following:

1. Defendant’s Request for Production of Documents, Set Two to Defendant Del Rio on the Park HOA (the “RPD”). Defendant Del Rio on the Park Homeowner’s Association is referred to herein as the “HOA.”

Opposition papers were filed by the HOA on March 11, 2026. The Opposition papers were filed late. In the Court’s discretion, it has considered them.

Reply papers were filed March 16, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

After the filing of the motion, the HOA served amended responses to the RPD after further efforts to locate responsive documents. Declaration of Hal Chase Jr. filed March 11, 2026 (“Chase Decl.”), ¶13 and **Exhibit 2** thereto (the “Amended Responses”).

Because Amended Responses were served and all of the responses at issue were included in those amended responses (see RPD Nos. 1, 2, 5, 6, 7), the present motion is moot except as relates to the matter of sanctions. Those Amended Responses were served October 2, 2025 and any issue with those further responses would have to have been raised by a motion directed at the Amended Responses within the statutory timeframe. See Code Civ. Proc. § 2031.310(c) (“Unless notice of this motion is given within 45 days of the service of the verified response, **or any supplemental verified response**, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.”) (emphasis added).

Accordingly, the pending motion is DENIED as MOOT with respect to the request to compel further

responses.

Notwithstanding the motion being moot as to the issue of compelling further responses, the Court considers the issue of sanctions. A court may award sanctions even when the subject requested discovery was provided to the moving party after a motion to compel was filed. Rule 3.1348(a) of the California Rules of Court (“CRC”) (“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ... the requested discovery was provided to the moving party after the motion was filed.”).

Sanctions

The HOA’s failure to make full and complete code compliant responses and to timely produce responsive documents—necessitating this motion to secure the later Amended Responses—constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

Among other things, the original responses were not code compliant and contained limitations and meritless objections despite a waiver of objections due to the initial failure to timely respond. Moreover, responsive documents were not timely produced or their inspection permitted. See Declaration of Jennifer Sommer filed September 29 2025, ¶2 *et seq.*

Even where the original responses appeared to acknowledge the existence of responsive material, the purported statements of compliance, as written, contained an outright refusal to comply based on the meritless contention that the responsive material was “equally available” to the propounding party:

Del Rio on the Park HOA objects to this request on the grounds that it is overly broad and burdensome on the grounds that it calls for information equally available to the propounding party.

Subject to and without waving the objection, Responding party responds as follows: Responding party is in possession CC &R’s relevant to the subject property and discovery responses previously served on all parties subject to this case, the contents of which are equally available to Propounding party and will not be reproduced.

See RPD No. 5, Separate Statement filed September 29, 2025, p. 4.

This response is not code compliant as written. Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, § 8:1469. A responding party is obligated to produce all responsive documents in the responding party’s possession, custody or control. Code Civ. Proc. § 2031.010(a); see also Code Civ. Proc. § 2031.220. Documents under a party’s “control” include those which a party has the legal right to obtain upon demand from third parties.

The Court finds that the foregoing conduct by the HOA constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In failing to make full and complete code compliant responses and necessitating the brining of this motion to secure production of responsive documents, the Court finds that the HOA did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of sanctions unjust.

The HOA shall pay monetary sanctions to Defendant in the amount of **\$1,310.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’

fees, incurred by Defendant as a result of the foregoing conduct by the HOA. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party.

Disposition

The Court further finds and orders as follows:

1. The Motions to Compel Further Responses is DENIED IN PART and GRANTED IN PART.
2. The Monetary Sanctions shall be paid by the HOA to Defendant within **thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing.

Courtroom Clerk's session

22. 10:00 AM CASE NUMBER: C23-01464

CASE NAME: BLANCA SANTOS VS. ANDREA ACOSTA

JURY TRIAL 5-7 DAYS

FILED BY:

TENTATIVE RULING:

Parties to Appear.

**Law & Motion
Add On**

23. 9:00 AM CASE NUMBER: C25-01397

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

Before the Court is Defendants Simona Zakheim ("Ms. Zakheim") and Hyden Zakheim, LLP's ("Hyden Zakheim") (collectively "Defendants") demurrer. The demurrer relates to Plaintiff Robert Rodriguez's ("Plaintiff" or "Mr. Rodriguez") First Amended Complaint for (1) Intentional Interference with Prospective Economic Advantage; (2) Negligent Interference with Prospective Economic Advantage;

(3) Conversion/Embezzlement (Pen. Code section 503); (4) Civil Conspiracy; (5) Equitable Enforcement of Lien and Accounting; (6) Constructive Trust; (7) Declaratory Relief; (8) Intentional Misrepresentation, Concealment, Deceit, and Fraud; and (9) Negligent Misrepresentation.

Pursuant to California Code of Civil Procedure section 430.10, Defendants demur to the seven causes of action alleged against them in Plaintiff's First Amended Complaint – (1) Intentional Interference with Prospective Economic Advantage; (2) Negligent Interference with Prospective Economic Advantage; (3) Conversion/Embezzlement (Pen. Code section 503); (4) Civil Conspiracy; (5) Equitable Enforcement of Lien and Accounting; (6) Constructive Trust; and (7) Declaratory Relief – on the grounds that no valid lien ever existed, Mr. Rodriguez fails to allege facts sufficient to establish any of these seven causes of action, and all causes of action are barred by statutes of limitations.

Plaintiff, who is representing himself *in propria persona*, opposes Defendants' demurrer on the grounds that (1) Defendants' request for judicial notice is improper, (2) the First Amended Complaint pleads delayed discovery and fiduciary tolling with particularity, foreclosing any statute of limitations ruling on demurrer, (3) Plaintiff's claims are tort-based and protect different primary rights than the procedurally dismissed 2019 fee contract action, (4) Plaintiff has adequately pled a valid attorney's charging lien created by written agreement and notice, (5) successor counsel who knowingly impair a lien and participate in concealment may be held liable under California law, and (6) all causes of action are adequately pled.

For the following reasons, Defendants' demurrer to Plaintiff's First Amended Complaint is **SUSTAINED in its entirety WITH LEAVE TO AMEND**.

Request for Judicial Notice

Defendants request that the Court take judicial notice of (1) Plaintiff's Complaint filed in the action entitled *Rodriguez v. Masoudi*, Contra Costa County Case Number MSC19-01309; (2) a printout of the court's docket in the marital dissolution matter, *Masoudi v. Masoudi*, Contra Costa County Case Number MSD13-03393; and (3) Defendant Elisabeth Masoudi's Request for Judicial Notice filed in the present action on October 15, 2025.

Plaintiff opposes the Request for Judicial Notice on the grounds of irrelevance, lack of authentication, hearsay, Evidence Code section 352, and alleged violation of California Rules of Court 3.1110(f).

Plaintiff's objection on authentication grounds is without merit. The documents identified in Defendants' request consist of pleadings, docket entries, and court orders issued in this and related Contra Costa County Superior Court actions. Such materials are proper subjects of judicial notice. Judicial notice may be taken of records or rules of any court of this state, regardless of certification (Evid. Code § 452(d), (e).) A court may take judicial notice of its own records when ruling upon a demurrer. (*Nulaid Farmers Assn. v. La Torre* (1967) 252 Cal.App.2d 788, 791.)

It is proper when ruling on a demurrer for a court to take judicial notice of a prior judgment in a different case so long as the parties have had adequate notice and opportunity to present relevant information and the court is merely taking notice of the fact that certain claims were asserted by the

plaintiff and denied by the defendant. (*Oeth v. Mason* (1967) 247 Cal.App.2d 805, 810, Evid. Code, § 453.) “Where facts which are judicially noticed show conclusively that an action is barred, it would be absurd to prolong the litigation so as to await some other method of proof.” (*Ibid.*)

Plaintiff’s hearsay objection likewise fails. The Court takes judicial notice of the existence of identified court records, the fact that they were filed or issued, the dates reflected therein, and the language used in those documents. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882 [“courts are free to take judicial notice of the *existence* of each document in a court file, including the truth of results reached, [however] they may not take judicial notice of the truth of hearsay statements in decisions and court files”]; see also *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) Only matters that are reasonably beyond dispute are subject to judicial notice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 835.) The Court is capable of limiting its consideration to the permissible scope of judicial notice.

Plaintiff’s objection under Evidence Code section 352 is also inapt. Judicial notice of court records relevant to procedural history and accrual issues does not create undue prejudice or confusion; as noted *supra*, the Court is capable of limiting its consideration to the permissible scope of judicial notice.

Plaintiff’s objection on the basis of California Rules of the Court 3.1110(f) is also without merit. The materials at issue are properly submitted in support of a demurrer and fall within the scope of records subject to judicial notice. Plaintiff has not demonstrated any procedural defect warranting denial of the request.

Accordingly, the Court **GRANTS** Defendants’ request for judicial notice as to the existence, filing, and contents of the above documents. The Court takes judicial notice of the fact that the pleadings, docket entries, and court orders in case numbers MSC19-01309 and MSD13-03393 were filed and issued, and of the allegations and procedural history reflected therein. The Court does not take judicial notice of the truth of any factual findings, hearsay statements, or legal conclusions contained in those materials.

Factual Allegations and Procedural Background

This suit arises out of an alleged attorney’s lien agreement.

Mr. Rodriguez, a former attorney, alleges that in April of 2015 he served written notice of an attorney’s lien on former client, Elisabeth Masoudi, whom he had previously represented in a family matter, *Masoudi v. Masoudi*, Contra Costa Superior Court Case No. D13-03393 (“Related Action No. 1”). (First Amended Complaint (“FAC”) ¶ 8.) The lien, which attached to any recovery, settlement, or community property distributions in Related Action No. 1, was also allegedly noticed to Ms. Zakheim and Hyden Zakheim as successor counsel. (FAC ¶¶ 8-9, Ex. A.)

Exhibit A, attached to the First Amended Complaint, is a copy of a “Notice of Attorney’s Lien for Fees and Costs,” listing Robert D. Rodriguez as the claimant in relation to the court action *in re Elisabeth*

Masoudi v. Peymon Masoudi. (FAC at Ex. A.)

From April 2015 through July 2024, Mr. Rodriguez alleges that Defendants, including Ms. Masoudi, acting in concert “actively concealed from Plaintiff the existence, nature, and terms of a settlement or property distribution in the dissolution action.” (FAC ¶ 11.) Mr. Rodriguez further alleges that he “could not in the reasonable use of diligence [have] discovered such nature, and terms of a settlement or property distribution in the dissolution action because such information was concealed and secreted from [him].” (*Ibid.*)

On July 1, 2019, Mr. Rodriguez filed a verified complaint in Contra Costa County (C19-01309) (“Related Action No. 2”) against Ms. Masoudi for (1) Breach of Contract; (2) Money Earned in Quantum Meruit for Reasonable Value of Work, Labor, and Services; (3) Account Stated; and (4) Book Account CCP §337a. (Def. RJN Ex. 1.) The complaint in Related Action No. 2 alleges that on July 19, 2013, Mr. Rodriguez entered into a contract “whereby [Ms. Masoudi] offered to pay Plaintiff for legal services related to a marital dissolution and domestic violence act matter.” (*Id.* Ex. 1 at 2:23-26.)

The complaint in Related Action No. 2 goes on to allege that on July 15, 2015, Mr. Rodriguez demanded payment from Ms. Masoudi in the amount of \$69,593.04 for legal services previously rendered; Ms. Masoudi allegedly refused. (Def. RJN Ex. 1 at 3:6-9, 24-25.) The complaint further alleges that “[a]t all relevant times, Plaintiff's claim is secured by an attorney's lien for services that has been completely disregarded by Defendant.” (*Id.* Ex. 1 at 3:16-17.)

On March 21, 2025, the court in Related Action No. 2 granted in its entirety a motion by Ms. Masoudi to (1) quash service of summons, (2) vacate default and default of judgment against Ms. Masoudi, (3) vacate and quash any writ of execution or abstract of judgment issued pursuant to the judgment, and (4) dismiss the action. (Attached as Ex. B to Def. RJN Ex. 3.) The court’s order stated that the ruling was based on findings related to fraudulent service of summons. (*Ibid.*)

Mr. Rodriguez filed the instant suit on May 16, 2025. In this action he alleges that on July 7, 2024, Ms. Masoudi first admitted to him that she had won “substantial community property funds from the dissolution case” and had used those funds to purchase a home. (FAC ¶ 13.) Mr. Rodriguez alleges that this was the first time he learned that Defendants allegedly conspired to conceal and impair his lien. (*Ibid.*)

Mr. Rodriguez filed his First Amended Complaint on November 3, 2025, and this demurrer from Ms. Zakheim and Hyden Zakheim followed on December 3, 2025.

Meet and Confer Efforts

It is the responsibility of the demurring party to meet and confer with the opposing party at least five days prior to the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

Defendants’ Counsel’s efforts to meet and confer before filing this motion consisted solely of written correspondence – namely, three emails labeled meet-and-confer letters sent November 19, 2025, November 20, 2025, and November 24, 2025. (Bulgucheva Dec. Ex. A, B, C.) Defendants’ Counsel

failed to engage in such efforts “in person, by telephone, or by video conference.” (Code Civ. Proc. §430.41(a).) California Code of Civil Procedure section 430.41 requires that a “good faith attempt to meet and confer was made.”

Section 430.41 provides that an alleged failure to meet and confer in compliance with the statute is not a permissible basis for either sustaining or overruling a demurrer, however. Accordingly, the Court proceeds with its ruling, while admonishing Defendants’ counsel to comply with meet and confer requirements in future filings.

Legal Standard

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court considers all matters that may be judicially noticed. (*Ibid.*) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.)

When facts alleged in a pleading contrast with facts in exhibits, the facts contained in the exhibits will be accepted as true and controlling and will be given precedence. (*Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624, 1627.)

The courts...will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. Thus, a pleading valid on its face may nevertheless be subject to demurrer when matters judicially noticed by the court render the complaint meritless.

(*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) “Where the complaint is defective, ‘[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...’” (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).)

Analysis

Statute of Limitations

The statute of limitations arguments raised in this demurrer substantially overlap with those raised in the related demurrer filed by Defendant Elisabeth Masoudi. The Court applies the same accrual and discovery analysis here.

The statute of limitations usually commences when a cause of action accrues, and it is generally said that an action accrues on the date of injury. (*Bernson v. Browning-Ferris Industries* (1994) 7 Cal.4th 926, 931.) A cause of action accrues at the time when the cause of action is complete with all of its elements. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191-92.)

The “discovery rule” is an exception to the general rule of accrual, and it postpones accrual of a cause of action until the plaintiff discovers or has reason to discover the cause of action. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) “[W]hen the plaintiff has notice or information of circumstances to put a reasonable person *on inquiry*, or *has the opportunity to obtain knowledge* from sources open to his investigation . . . the statute commences to run.” (*Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93, 101 (citations omitted) (emphasis in original).)

A plaintiff need not be aware of the specific “facts” necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.

(*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.)

The defendant’s fraud in concealing a plaintiff’s cause of action tolls the applicable statute of limitations for the period during which the claim is undiscovered by plaintiff or such time as plaintiff, by exercise of reasonable diligence, should have discovered it. (*Sanchez, supra*, 18 Cal.3d at 99.) “[T]he culpable defendant should be estopped from profiting by his own wrong *to the extent* that it hindered an ‘otherwise diligent’ plaintiff in discovering his cause of action.” (*Id.* at 100.)

Here, Mr. Rodriguez’s causes of action for intentional and negligent interference are subject to a two-year statute of limitations. (Code Civ. Proc. § 339(1).) His claim for conversion is subject to a three-year statute of limitations period. (*Id.*, Code Civ. Proc. § 338(c).) Civil conspiracy, constructive trust, and declaratory relief are derivative and governed by the statute applicable to the underlying substantive claims. To the extent Mr. Rodriguez seeks enforcement of rights arising from a written fee agreement, such claims are subject to a four-year limitations period. (*Id.*, Code Civ. Proc. § 337.)

Defendants contend that Mr. Rodriguez’s claims are time-barred on their face because “Plaintiff had actual knowledge that he had not been paid and that he purportedly had an unpaid lien” by 2019 at the latest. (Memorandum of Points and Authorities in Support of Demurrer (“MPA ISO Demurrer”) at

3:17.)

Mr. Rodriguez does not reconcile his prior verified allegation that his lien had been “completely disregarded” with his present assertion that he first discovered actionable wrongdoing in July 2024. (Def. RJN Ex.1 3:16-17, FAC ¶ 13.) He instead argues that the complaint in his 2019 suit is not judicially noticeable and that accrual turns solely on later discovery of settlement proceeds.

As discussed *supra*, the Court may take judicial notice of the existence and contents of the 2019 complaint. Mr. Rodriguez’s previous verified allegations demonstrate that by July 2019, at the latest, he believed that his asserted lien rights had not been honored and that he had suffered injury. These allegations demonstrate that by July of 2019, he had more than suspicion of wrongdoing, he had incentive to sue, and in fact he did sue. (*Jolly, supra*, 44 Cal.3d at 1111.)

Mr. Rodriguez’s allegation in the instant suit that he first learned in July of 2024 that Ms. Masoudi used dissolution proceeds to purchase real property does not alter this conclusion. The relevant inquiry for accrual is when Mr. Rodriguez discovered or had reason to discover that his alleged lien had been disregarded, not when he later learned how settlement or community property funds were used. A plaintiff is charged with knowledge once he has reason to suspect a factual basis for wrongdoing. (*Fox, supra*, 35 Cal.4th at 807.)

As currently pleaded, Mr. Rodriguez’s First Amended Complaint demonstrates that he believed his asserted lien rights had been disregarded no later than July 2019. The instant suit, filed in May 2025, therefore appears untimely under any potentially applicable statute of limitations.

Because the Court concludes that Mr. Rodriguez’s claims are time-barred as presently alleged, the Court need not reach the separate grounds that Defendants raise with respect to these causes of action. However, in an abundance of caution, Mr. Rodriguez is granted another opportunity to amend his complaint to allege, if he can do so in good faith, specific facts demonstrating that his claims are timely under the discovery rule.

Any amended pleading must clearly identify the factual basis for delayed discovery and explain why Plaintiff’s prior verified allegations do not establish accrual in 2019. The Court cautions Mr. Rodriguez that where a complaint contains allegations inconsistent with attached documents or documents judicially noticed, the exhibits and judicially noticed documents will be accepted as true and controlling and will be given precedence. (*Dodd, supra*, 222 Cal.App.3d at 1627; *Del E. Webb Corp., supra*, 123 Cal.App.3d at 604.)

Conclusion

For the foregoing reasons, Defendants’ demurrer is **SUSTAINED in its entirety WITH LEAVE TO AMEND.**